COMBINED LEct and 10 AUGUST 2026 (CONSTITUTION)

Extremely Detailed Notes on Constitutional Law Lecture: Article 15 and Related Issues

I. Initial Classroom Interaction Regarding Assignment on Article 14 Nexus Test

The lecture begins with the professor inquiring about the completion status of an assignment. Students confirm they have copied material up to the 93rd Constitutional Amendment and have completed the objective section and Article 15. The professor then instructs them to add a new task below their existing work, specifically directing them to "Test the validity of the above classification with reference to the nexus test of Article 14." This instruction is critical because it sets up the analytical framework for evaluating whether the classification made in the 93rd Amendment—which exempts minority educational institutions from admitting students from socially and educationally backward classes—actually serves the objective of providing education to poor children or whether it breaks the required nexus between the classification and the legislative objective.

When a student named Prince is called upon and reports that his result shows the classification as "valid," the professor expresses strong disagreement. He explains that if the result is showing valid, it indicates either that the student has not given the proper command to the analytical tool, or that the student is being a "slave to the Supreme Court" without critical thinking, or simply is not reading the material properly. This reveals the professor's pedagogical approach: he is actively encouraging students to use technology like ChatGPT in class while simultaneously teaching them to question judicial authority and engage in independent legal reasoning rather than blindly accepting Supreme Court precedents.

II. Critique of Congress Party's Islamophobia and the 93rd Amendment's Minority Exemption

The professor launches into a substantial political critique, asserting that the Congress party has developed a condition he terms "Islamophobia," which he defines as placing Muslims above everything else—above the country, above any law—in every action. He argues this is fundamentally wrong. The core of his analytical critique centers on the objective of the Right to Education Act and the 93rd Constitutional Amendment: that poor children should receive good education in good schools. He poses a rhetorical question that forms the crux of his nexus test argument: "Where is it written that they shouldn't get an education in minority schools? What problem is there with minority schools?"

He elaborates that when properly analyzed—and he confirms he conducted this exercise in another class earlier that day and already knew the outcome independently—the classification fails the nexus test. The reasoning is that the objective establishes that poor children constitute one category requiring assistance, private schools represent another category separate from government schools, and children fundamentally need to study. The exclusion of minority institutions introduces an extraneous classification that has no logical connection to the stated objective. The professor questions: "Where is the classification for minority coming in there? The point is whether it's a school or not a school."

III. Constitutional Protection Under Articles 19(1)(g), 14, and 21 Versus Article 30

The professor develops a sophisticated constitutional argument regarding the hierarchy of fundamental rights. He references the Supreme Court's reasoning in the Ashok Kumar Thakur case, where the Court held that minority institutions are exempt because they are "specially protected by Article 30." He challenges this reasoning by asking whether the rest of the people in society are protected by the Constitution of Pakistan, implying that non-minority citizens also have constitutional protections that deserve equal consideration. The other schools that operate in India received their protection from the Indian Constitution, not from Pakistan's Constitution.

He specifically identifies Article 19(1)(g), which guarantees the freedom of trade and business, as providing protection to all citizens, including those who establish and operate non-minority private schools. He then articulates a crucial constitutional principle: Articles 14, 19, and 21 are considered superior to other Articles in the constitutional scheme. This hierarchy means that the protection afforded to minority institutions under Article 30 cannot be elevated above the protections guaranteed to all citizens under Article 19. He characterizes the Supreme Court's failure to recognize this hierarchy as "foolishness" and categorizes the Ashok Kumar Thakur decision as being "among all the terrible decisions."

The professor connects this constitutional analysis to what he perceives as Congress's Islamophobia, arguing that Congress exempted minority institutions under this influence. He questions the practical reality: who will educate a child in a Muslim madrasa? He asks whether students' parents would educate them in madrasas, and notes that Muslims have very few schools aside from institutions like Jamia Millia Islamia and Aligarh Muslim University, where even there, he asserts, "Islamization" is occurring.

IV. Personal Anecdote About Aligarh Muslim University and Indian Civilization

The professor shares a detailed personal experience from a lecture visit to Aligarh Muslim University approximately 15-20 years ago. During a meal function, he observed that non-vegetarian food was served first, with plates filled with non-veg items being carried over and dripping into the dal (lentil) dishes before the vegetarian items were served. This arrangement made it impossible for him to eat, as the non-vegetarian food had contaminated the vegetarian dishes. He and his companions returned to the guest house without eating.

A caretaker named Abdul, whom the professor describes as a "poor guy," noticed that he had not eaten and persistently inquired about the problem. When the professor finally explained that he could not eat because of the contamination of vegetarian food with non-vegetarian items, Abdul demonstrated what the professor characterizes as "Indian civilization." Despite knowing that the professor was a "Hindu pandit type of person" who did not eat because of non-vegetarian food concerns, Abdul went and procured a large glass of first-class milk and four bananas for him, showing concern and hospitality regardless of religious differences.

The professor uses this experience to offer practical guidance to students about arranging food at events: vegetarian food should be served first, and non-vegetarian items should be kept separate and served later, so that if any drips or spills occur, they do not contaminate the vegetarian dishes. He notes that at the Aligarh function, there appeared to be 4-5 types of non-vegetarian dishes, and the event was attended by 4-5 Supreme Court judges and several Vice Chancellors. He emphasizes the discomfort of having to sit with everyone but being unable to eat, and the awkwardness of trying to remove contaminated pieces from one's plate while others might question what one is doing.

V. Analysis of the Nexus Test Failure and Criticism of Supreme Court Judges

Returning to the legal analysis, the professor reiterates that the 93rd Amendment's classification—dividing schools into private, government, and minority categories—passes the initial classification test because it creates identifiable groups. However, it fails the nexus test because there is no reasonable connection between excluding minority institutions and achieving the objective of educating poor children. The objective is to benefit poor children, so the exclusion of minority institutions means those children cannot access education in those schools, which directly contradicts and undermines the stated purpose.

He mockingly suggests that Supreme Court judges should sit behind students and attend his class to learn proper constitutional analysis. He acknowledges that judges know classification principles—they are not foolish about that—but argues they engage in "sycophancy for Congress." He draws a contemporary parallel, noting that Rahul Gandhi is now alleging that judges engage in sycophancy for Modi as well, suggesting a pattern of judicial deference to political powers across different administrations.

The professor addresses potential criticism that his teaching is anti-Muslim, defending himself by pointing to the written legal analysis. He then offers to share a case that he suggests will be particularly disturbing for students to hear about.

VI. State of Rajasthan vs. Thakur Pratap Singh (or Sampratap Singh) Case

The professor recounts a case from Rajasthan involving discriminatory taxation. In a particular village where dacoity (banditry) was rampant, villagers requested the Chief Minister of Rajasthan, who belonged to the Congress party, to post additional police for their protection. The Chief Minister responded that while police would be posted, the government was "very poor" and the villagers would need to contribute money for the additional police personnel. The villagers, particularly the wealthy residents, agreed that village safety was paramount and consented to pay.

However, when the Chief Minister returned to Jaipur and consulted with Rahul Gandhi, instructions were given not to collect money from Muslims. Consequently, an Act was passed requiring villagers to pay an additional tax for the additional police forces, with an explicit exemption for Muslims. The case, identified as State of Rajasthan vs. Thakur Pratap Singh or possibly Thakur Sampratap Singh, established that such discrimination on the basis of religion violates Article 15(1), which prohibits discrimination solely on grounds of religion, race, caste, sex, or place of birth.

The professor expresses ongoing bewilderment at this policy: when dacoity affects the entire village, and everyone should contribute to the solution, why would Muslims be exempted from paying the tax? He states that even today he does not understand the rationale, and this incomprehensible discrimination fuels his criticism of the Congress party. He notes that this case is taught as part of Article 15, demonstrating that discrimination in the name of religion is constitutionally prohibited.

VII. Constitutional Hierarchy: Articles 14, 19, and 21 as Superior Rights

The professor elaborates on the constitutional principle that Articles 14, 19, and 21 constitute a superior trinity of fundamental rights. He instructs students to examine Article 25, which guarantees freedom of religion, noting that it begins with the phrase "Subject to public order, morality and health and to the other provisions of this Part." The critical phrase "other provisions of this Part" means that Article 25 is subject to and limited by other provisions in Part III of the Constitution, including Articles 14, 19, and 21.

He provides a concrete contemporary example: the Supreme Court's ruling on loudspeakers in mosques. When loudspeakers used at very high volumes in mosques created noise disturbances, the Supreme Court held that the practice must be restricted because Article 21, which guarantees the right to life and personal liberty (interpreted to include the right to peaceful living without noise pollution), is superior to Article 25. If anyone's rights under Article 21 are being disturbed, then the rights claimed under Article 25 must yield. This demonstrates the practical application of the hierarchy principle.

Applying this reasoning to the minority institution exemption, the professor argues that if Article 30 protection for minority institutions conflicts with Article 19(1)(g) rights of other citizens or with the broader equality framework, Article 30 must yield to the superior provisions of Articles 14, 19, and 21. The Supreme Court's failure to apply this hierarchy in the Ashok Kumar Thakur case constitutes, in his view, a fundamental analytical error.

VIII. Sukanya Samriddhi vs. Union of India: Caste Discrimination in Prisons

The professor introduces a significant recent case, Sukanya Samriddhi vs. Union of India, decided in 2023 or 2024. He describes Sukanya as a "very dynamic journalist" who conducted research revealing that caste-based discrimination persisted in Indian prisons even many decades after independence. In jails, work assignments were being made on the basis of caste: Dalit prisoners were assigned to dig drains and clean bathrooms, while Brahmin prisoners were assigned to work as cooks. This practice continued despite Congress having amended the Constitution to declare India a "Socialist Secular" republic and claiming to protect everyone's interests.

Disturbed by her findings, Sukanya engaged a top-class lawyer, Justice Muralidhar, who had served as the Chief Justice of the Orissa High Court and was a very respected judge. She filed a Public Interest Litigation (PIL) challenging this discriminatory practice. The case reached the Supreme Court, where lawyers made the compelling argument that Article 15 explicitly prohibits discrimination on grounds of caste, yet the prison system was recording prisoners' caste and using that information to assign work on a caste basis.

Chief Justice Dhananjaya Chandrachud, delivering the judgment, made a landmark observation that there is no need to record caste anywhere, as doing so facilitates discrimination. The Court directed that the caste column and any references to caste in the registers of undertrial and convict prisoners inside prisons "shall be deleted." The professor reads this directive aloud and emphasizes its significance.

He connects this judgment to Dr. B.R. Ambedkar's vision of a casteless society, noting that Ambedkar advocated for ending the caste system as quickly as possible. However, he contrasts this with Rahul Gandhi's persistent demand for a caste census over four years, arguing that conducting a caste census moves in the opposite direction from the goal of a casteless society. He notes that the BJP initially opposed the caste census on the principled ground that India should move toward a casteless society, consistent with both Ambedkar's vision and the Supreme Court's judgment. However, political pressures later caused the BJP to relent on this position.

The professor expresses strong approval of the judgment, asking students how many agree with it, and characterizing it as a "great judgment." The underlying logic is that if caste is not recorded, it becomes more difficult to discriminate on that basis; conversely, recording caste facilitates discrimination.

IX. Critique of Caste Census and Discussion of Reservation Policy

In response to a student's question about the purpose and potential negative effects of a caste census, the professor offers a detailed critique. He asserts that caste consciousness in India is actually increasing due to the reservation system itself. He references Rahul Gandhi's political formula: "Jitni jiski sankhya, uski utni hissedari" (As is the population, so is the share), suggesting that Gandhi believes that by combining Dalits and OBCs, who together constitute approximately 90% of the population (with some including Muslims in this calculation), and promising them 70-80% reservation, the Congress party can secure their votes.

The professor challenges this approach by posing a fundamental question: is the government distributing stolen goods that must be divided proportionally among thieves? He directs students to examine Dr. Ambedkar's original constitutional vision through Article 16. First, he emphasizes that the primary focus of the Constitution is equality. Second, Article 16(2) explicitly states there should be no discrimination of any kind. Third, Article 16(4) provides for reservation only when there is "adequate representation" lacking, and even then, the provision must be read with the constitutional requirement that reservation should not compromise "the efficiency of administration."

He references Article 335, which stipulates that claims of Scheduled Castes and Scheduled Tribes shall be taken into consideration consistently with the maintenance of efficiency of administration. Reading Articles 16(4) and 335 together, the Supreme Court established the principle that equality remains the dominant constitutional value, and reservation cannot exceed 50% under any circumstances.

When a student raises the point about the 10% Economically Weaker Sections (EWS) reservation exceeding the 50% cap and the Supreme Court upholding it as part of the basic structure, the professor clarifies that EWS reservation is fundamentally different. It is not reservation on the basis of caste, and it is specifically not available to those who are already receiving reservation benefits. This means it brings in people from other castes who were previously excluded, rather than increasing benefits for the same castes.

X. The Dangers of Caste Census and Vote Bank Politics

The professor develops a sophisticated argument about the political dangers of conducting a caste census and distributing resources on the basis of caste population. He presents a hypothetical scenario where different caste groups, upon learning their exact population percentages, would demand proportional political power. Dalits would want to become Prime Minister in areas where their population is concentrated; Yadavas would make similar claims in their strongholds. This dynamic, he argues, is precisely what led to the partition of India: Jinnah's argument was fundamentally that Muslims, as a minority in a Hindu-majority country, would never have a genuine opportunity to come to power.

He characterizes this as the ruination of politics, where every group fights for its own interest rather than the national interest. He argues that the policy of capping reservation at 50% was a sound policy, and there should not have been excessive focus on caste census. He acknowledges that the current government, needing votes, has also compromised on this principle, but maintains that the ideal remains a casteless society.

The professor expresses deep concern about vote bank politics, calling it "the biggest evil of democracy." He describes how political parties manipulate caste and religious identities, making different groups fight among themselves while politicians secure their votes. He specifically warns that if a caste census reveals that OBCs constitute 80% of the population, they will not remain satisfied with 27% reservation. The demand for proportional reservation would lead to violent protests, police firing, and significant loss of life—he predicts at least 50-100 people would die.

When a student asks whether current factual data should be considered rather than ignoring reality, the professor responds that even if 70-80% of the population belongs to certain castes, giving 70-80% reservation effectively ends the constitutional commitment to equality. The 50% cap maintains the balance between recognizing historical disadvantage and preserving the equal character of the state. Since proportional reservation cannot be given constitutionally, there is no positive factor to be gained from determining the exact population percentages through a caste census.

XI. The True Purpose of Reservation: Ending the Ruler-Ruled Divide

The professor provides a profound philosophical explanation of the true purpose of reservation in India. He references the character Manthara from the Ramayana, quoting her statement in Awadhi: "Koi hoi Ram hame ka hani, cheri chhod na hoi bai rani" (Whoever becomes king, I will have no difficulty; I will merely remain in the position of servitude). This illustrates that under the old social order, no matter who ruled, the servants remained servants—the line between the ruling class and the ruled class was absolutely fixed.

In traditional monarchical systems, only kings could become kings; no servant, regardless of capability, could ever ascend to that position. Reservation was designed to break this permanent divide between the ruler and the ruled. By providing access to government positions for Dalits and backward classes, reservation aimed to eliminate the psychological sense that "I am the ruler and these are the ruled." Based on competence, anyone—whether Dalit or general caste—can become a Collector by passing the IAS examination, or can become a political representative by securing votes.

The professor explains that initially, Dalits could not pass the IAS examination for some time, which necessitated a modest reservation to provide them the opportunity. The fundamental goal was to bridge the gulf between the ruling class and the ruled class, so that Dalits would not feel disconnected from the nation, thinking "What do we have to do with this country? We are peons anyway." Instead, they should develop the feeling that "This country is ours too, and we are rulers of this country, and we are protectors of this country, and it is our country, we have to do good for this country."

Reservation was thus designed to transform the psychology of the ruled class, lifting them from an inferiority complex and awakening feelings of patriotism and ownership of the nation. It was intended to make the ruled class a part of the ruler class. The professor emphasizes that economic empowerment was never the primary purpose of reservation in employment. He cites his own son, who never prepared for a government job even for a single hour, observing that a Chief Secretary earns perhaps ₹1.5-2 lakh monthly salary with some privileges while in office, but afterward "they'll die of hunger." In the coming era, he suggests, such amounts will be insufficient, and one could earn more selling samosas. He argues that the craze for government jobs exists primarily because of corruption; the day corruption ends, no child will aspire to government employment.

He supports this with the example of a friend and classmate from NLU Jodhpur who now serves as a Group General Counsel, earning ₹4 crore annually—far more than any government position could provide. The implication is that talented individuals are increasingly choosing private sector careers, and government service attracts those seeking opportunities for corruption rather than genuine public service.

XII. The Tina Dabi Example and the Problem of Creamy Layer in SC/ST Reservations

The professor raises the issue of the creamy layer principle in the context of SC/ST reservations, using the example of Tina Dabi, an IAS officer. He points out that her father is a General Manager in BSNL, and her mother is herself an IAS officer. Despite coming from a family where both parents have been high-ranking government officers for 25 years, she availed reservation benefits to become an IAS officer. The professor questions the logic: when both

parents have been IAS officers for a quarter-century, what legitimate need exists for reservation benefits? And if her children also avail reservation, the cycle perpetuates without addressing genuine disadvantage.

He references Dr. Mahatme, a nominated Rajya Sabha member and eye surgeon from Nagpur, who had discussed this very issue with him 2-3 times and had compiled a list demonstrating the problem. The professor notes that while the judiciary has now taken steps through the State of Punjab vs. Davinder Singh case (which permitted sub-classification within SC/ST categories), Justice Gavai, himself a Dalit, faced significant criticism and abuse for supporting sub-classification. Meanwhile, the Modi government, seeking votes, filed an affidavit stating they would not implement such measures, demonstrating the continued influence of vote bank politics.

XIII. The Delhi Judicial Service Association vs. State of Gujarat Case (1991)

The professor narrates a remarkable case that illustrates the tensions between the judiciary and the police, as well as the protections eventually afforded to judicial officers. He describes a judge in Gujarat who was known for being very strict with police officers regarding their investigation quality. The judge would regularly berate police officers in open court for inadequate investigations, asking "Haven't done investigation, what are you doing?" This created significant resentment among the police force.

The professor explains the systemic challenges police face: they are understaffed and overworked, running between multiple crime scenes. In one instance, while investigating a rape case, officers would be called to a completely different incident—a truck hitting a car with eight fatalities—forcing them to divide their limited attention. The professor notes that this systemic problem has led to long-standing demands for police reform, including separating the investigation function from the law and order maintenance function, and reducing the burden of VIP security that consumes a substantial portion of Delhi Police personnel.

The aggrieved police officers devised a plan. They invited the judge to the police station for dinner and inspection, extending what appeared to be excellent hospitality. During the dinner, they persuaded the judge to consume alcohol—initially he declined, saying "I don't take it," but upon their persistent pressing, he relented, reportedly saying "I don't take it, but since you are pressing, I'll take it." Through continued pressure, he consumed more than he intended.

Taking advantage of his inebriated state, the police officers then beat him severely, accusing him of consuming alcohol and issuing threats. They shaved his head, placed him on a donkey, and paraded him through the area, declaring "Look, he's a judge, drinks alcohol and is unconscious, what judgment must he be giving!" The incident terrorized the entire judiciary; even capable IPS officers who might have been involved were protected by the fear that prevented anyone from filing complaints.

The professor notes that news of the incident reached Delhi, where the judicial establishment was outraged at such mistreatment of a judge. The Delhi Judicial Service Association filed a case in the Supreme Court (Delhi Judicial Service Association vs. State of Gujarat, 1991). The Supreme Court held that even if the judge had consumed alcohol, the appropriate response would have been to put him in a car, take him home, and let him sleep—alcohol's effects dissipate after a few hours naturally. The IPS officer involved was suspended, and the Court issued guidelines regarding when and how a Magistrate can be arrested, providing certain procedural protections for judicial officers.

The professor uses this case to impart a life lesson: one should not misbehave excessively with anyone. He acknowledges that he himself sometimes makes mistakes, losing his temper and scolding people—he mentions having recently thrown someone out of his office for leaving in the middle of studies to go watch a movie and sit in a bar. He notes that the theater apparently had a bar inside, and second-year students had gone there, purchased alcohol from somewhere when the bar owner (described as an honest man who checked identification) refused to serve them because they were under the legal drinking age of 21 in Maharashtra.

XIV. The Arrest Warrant Against the President: Judicial Corruption Anecdote

The professor shares another striking story about judicial corruption in Gujarat. Two individuals were drinking at 8 PM (described as "good time") and began debating the extent of corruption in the judiciary. One man insisted that with contacts in the judiciary—even just connections with a judge's clerk—one could get anyone jailed. The other man, described as honest like the professor, disagreed. The first man, emboldened by alcohol, proposed a bet: he could get an arrest warrant issued against anyone the second man named, for just ₹500.

The second man gave ₹5,000 and named the President of India, the Chief Justice of India, and the Governor of Gujarat as the targets. Remarkably, a Magistrate (described as a "3rd class" magistrate) actually issued arrest warrants against these high constitutional functionaries. The man who won the bet then had the warrants published in a first-class newspaper under the headline: "THE HIGHEST LEVEL OF CORRUPTION IN JUDICIARY! Arrest warrant against the President of India!"

The professor points out the constitutional impossibility: as he had just taught, arrest warrants cannot be issued against the President and Governor, who enjoy immunity under Article 361. The incident occurred in Ahmedabad, and the judge involved was presumably suspended. The professor uses this to illustrate that problems in the country have existed throughout history and continue to exist; it is not a phenomenon unique to any particular political era.

XV. Political Dynamics and the Evolution of BJP's Approach

The professor provides a brief political history, noting that the BJP initially positioned itself as different from other parties, with leaders like Atal Bihari Vajpayee, Murli Manohar Joshi, and others who maintained that while others might engage in dishonesty, they would not. However, the party's experience of losing power—specifically when Vajpayee's government fell by a single vote—changed this approach.

He recounts that the vote that brought down Vajpayee's government was cast by the Chief Minister of Orissa, who was not even supposed to vote in Parliament. The professor characterizes this as a complete absence of morality, noting the enormous loss the country suffered from the resulting instability: an unstable government came to power with a Prime Minister who lacked real authority, and re-elections had to be held.

This experience led the BJP to adopt a more pragmatic approach: "diamond cuts diamond"—until one is willing to be somewhat dishonest, one cannot come to power. The professor expresses nostalgia for the earlier generation of BJP leaders like Sushma Swaraj, Arun Jaitley, and Pramod Mahajan, whom he describes as "top-class leaders," but acknowledges they could not secure power because they missed out on a little dishonesty, losing by a single vote obtained through improper means.

He mentions that Amit Shah, in response to political attacks and the release of compromising videos, adopted a tit-for-tat approach: "You got me beaten up for 10 hours, now I'll make it 50 hours for you. My video got released, now his video will be released—get him beaten up in front of TV people!" The

professor showed students a video of P. Chidambaram being subjected to such treatment and criticized this approach, noting that a female student had rightly observed that this cycle of retaliation is wrong—removing corrupt leaders is appropriate, but adopting their methods undermines the moral justification.

He extends this critique to the political discourse where scandals are defended by pointing to similar scandals under previous governments: "In our time paper leaked, so BJP spokesperson says 'In your time it leaked 10 times!'" The appropriate response should be: "It leaked 10 times in your time, that's why we removed you! Now you do something different!" The failure to break this cycle represents a significant problem in Indian politics.

XVI. Detailed Introduction to Article 15 and Its Structure

The professor transitions to the formal teaching of Article 15, beginning with its constitutional history and structure. He explains that in the Draft Constitution, Article 15 was numbered as Article 9, and its original text read: "The State shall not discriminate against any citizen on ground only of religion, race, caste, sex, or any of them. In particular, no citizen shall on grounds only of religion, race, caste, sex, or any of them be subject to any disability, liability, restriction, or condition with regard to..."

He connects this to the historical context discussed earlier in the course regarding Article 14, explaining that there used to be disabilities imposed on certain persons and privileges accorded to others. He references the example of Nangeli, a woman who was not permitted to wear upper garments, and other instances where certain groups were denied access to water or education—these constituted the disabilities that Articles 14, 15, 16, and 17 were designed to eliminate.

Article 15 currently contains six clauses (1 through 6). Clauses 1, 2, and 3 were part of the original Constitution as adopted in 1950. Clauses 4, 5, and 6 were added through subsequent constitutional amendments. Specifically, Article 15(5) was added by the 93rd Constitutional Amendment in 2005, and Article 15(6) was added by the 103rd Constitutional Amendment, which provided 10% reservation to Economically Weaker Sections (EWS).

XVII. Article 14 Versus Articles 15, 16, and 17: The Tablet Versus Injection Analogy

The professor develops a powerful metaphor to explain the relationship between Article 14 and the subsequent equality provisions. He characterizes Article 14 as a "tablet"—a general medicine that works slowly and may take time to bring about reform. Its application requires interpretation, such as determining whether a particular classification is reasonable and whether it passes the nexus test. This interpretive process carries the risk that the judiciary might, following flawed reasoning like the American Supreme Court in Plessy vs. Ferguson, arrive at incorrect conclusions that perpetuate discrimination under the guise of formal equality.

In contrast, Articles 15, 16, and 17 function as "injections"—they provide immediate relief by specifically prohibiting particular forms of discrimination that have historically plagued Indian society. Dr. Ambedkar, understanding the deeply entrenched nature of discrimination in India, did not want the elimination of these practices to depend on the chance outcomes of judicial interpretation. He wanted to eradicate all existing problems instantly, and therefore, despite having the general guarantee of equality in Article 14, he considered it necessary to include the more specific and direct prohibitions in Articles 15, 16, 17, and 18.

This structural design reflects an understanding that general constitutional principles, while important, may not be sufficient to dismantle specific, historically entrenched systems of discrimination. The specific provisions provide clear, unambiguous directives that do not require the same level of interpretive work and are less susceptible to the kinds of errors that characterized decisions like Plessy vs. Ferguson.

XVIII. The Five Prohibited Grounds of Discrimination Under Article 15

The professor systematically explains each of the five grounds on which discrimination is prohibited under Article 15: religion, race, caste, sex, and place of birth. He emphasizes that the Constitution prohibits discrimination "only" on these grounds, meaning that if additional factors are combined with these grounds, the state may be able to justify differential treatment.

Religion: Religious discrimination has been pervasive throughout history, not only in India but globally. The professor notes that European history is particularly replete with religious persecutions, including conflicts between Catholics and Protestants. The Constitution's prohibition on religious discrimination means that laws cannot be made solely on the basis of religion. However, the professor questions how certain laws, such as the Haj subsidy that existed 8-10 years ago (which only benefited Muslims going on Haj pilgrimage), could be constitutionally justified. He speculates that the justification might have involved combining religion with another factor, such as providing benefits to "poor Muslims" rather than Muslims as a religious category.

Race: The professor explains race as referring to ethnic origin and physical characteristics that distinguish different groups. He provides examples: Nepalis, Afghans, Chinese, and Koreans have visibly different physical features and constitute different races. He notes that India's long history as a destination for migration means that diverse racial groups have settled here over millennia—Jews first arrived in the 6th century BCE, before either Christianity or Islam existed, and various groups have continued to arrive and settle throughout history.

Contemporary racial discrimination persists in India, as evidenced by incidents in Bangalore, Noida, and other cities where people from Northeast India (the "Seven Sisters" states) face discrimination. This discrimination occurs not on the basis of caste, religion, or gender, but specifically on the basis of race—their visibly different physical features mark them for differential treatment. This demonstrates the continuing relevance of the constitutional prohibition on racial discrimination.

Caste: The professor provides an interesting historical note: the word "caste" itself is not of Indian origin but is a Portuguese word. This etymological fact suggests that while the phenomenon of social stratification existed in India, the specific terminology used to describe it came from external observers. He traces the origins of the caste system to occupational divisions—those who worked with iron became iron-smiths, those who worked with gold became gold-smiths. In the absence of formal training institutions like IITs or professional colleges, skills were transmitted within families from parents to children, creating hereditary occupational groups.

He notes an important historical observation: in ancient texts like the Mahabharata, characters are not identified by caste surnames. Shri Krishna is not referred to as "Shri Krishna Yadav," Arjun is not "Arjun Singh," Dhritarashtra is not "Dhritarashtra Thakur," Duryodhan is not "Duryodhan Singh," and Ram is not identified by any caste surname. This suggests that the rigid caste identities and surnames that characterize the modern caste system developed later, though the precise timeline of this development remains a matter for historical investigation.

The professor suggests that the caste system may have originally developed on a "convenience basis"—different occupational groups developed different lifestyles, dietary habits, and cultural practices, and people were comfortable interacting primarily within their own groups. In small tribal societies with limited transportation and interaction, people lived in relatively isolated communities, developing their own customs and fearing outsiders. He draws a parallel to the protected tribes of the Andaman Islands, where contact with outsiders is prohibited by the government because the tribes are extremely dangerous to outsiders and the government cannot protect visitors without harming the protected tribal members. A Bollywood film, "Tejas," apparently depicts a similar scenario involving an Air Force pilot who crashes in a protected tribal area and must be rescued.

Despite these historical complexities, the professor emphasizes that caste-based discrimination has been, and continues to be, a severe problem in India, with murders and other atrocities still occurring on the basis of caste. The Constitution's prohibition on caste-based discrimination remains critically important.

Sex: The professor engages in a detailed discussion of the distinction between sex and gender. When he asks students who, like him, does not know the difference, few raise their hands—he praises the honest ones and criticizes those who "want to live in darkness throughout their life." A student named Kanishk provides the correct answer: sex is biological, while gender is a social construct and identity.

The professor elaborates on gender-based stereotypes and their harmful effects. He provides the example of NLU graduates who studied together for five years, ate the same mess food, and had identical educational experiences. Both male and female graduates may work at the same law firm like Amar Chand Mangaldas, returning home at midnight. Yet after marriage, societal expectations dictate that kitchen responsibilities belong exclusively to the wife, while the husband bears no such obligation. This constitutes a gender-based stereotype that imposes unequal burdens on women.

He observes that women in contemporary society face tremendous pressure. In earlier generations, when fewer women worked outside the home, their responsibilities were primarily domestic. Now, women are expected to work full-time jobs while also managing all household responsibilities—preparing children for school, making breakfast and lunch, cooking dinner, helping with homework—while husbands do not share these burdens equally. The professor describes this as "harassment" and expresses hope that societal change will eventually correct these inequalities.

He shares a positive counter-example involving someone who calls her husband when arriving at the stadium to instruct him to make tea—a reversal of traditional gender roles that he applauds. He also discusses the isolation and depression that housewives in nuclear families experience when children grow up and leave, and the husband is occupied with work. Without the extended family networks and community connections that characterized earlier generations, women who do not work outside the home can find themselves isolated, bored, and feeling useless. He recommends that women maintain professional engagement, even if the financial returns are modest, for the social connection and sense of purpose it provides.

Place of Birth: The professor references the historical practice of declaring certain groups as "Criminal Tribes" by the British colonial administration. In the Saurashtra region, people born into certain communities were designated as criminals by birth, subjected to special surveillance and restrictions. This exemplifies discrimination based on place of birth—being born in a particular community or region resulted in the imposition of legal disabilities. Today, similar discrimination may be observed in attitudes toward people born in certain countries or regions, such as Syria, where even innocent individuals face suspicion based solely on their place of origin.

XIX. Article 15(4): The First Constitutional Amendment and the Champakam Dorairajan Case

Article 15(4) was not part of the original Constitution but was added by the First Constitutional Amendment. The professor explains that this amendment was necessitated by the Supreme Court's decision in State of Madras vs. Champakam Dorairajan. In that case, the Supreme Court struck down a government order that provided caste-based reservations in educational institutions, holding that such reservations violated Article 15(1)'s prohibition on discrimination based on caste.

The Champakam Dorairajan decision created a constitutional crisis because it threatened the entire framework of affirmative action for historically disadvantaged communities. To overcome this judicial obstacle, the Parliament enacted the First Constitutional Amendment, inserting clause (4) into Article 15. This new clause explicitly empowered the state to make "any special provision for the advancement of any socially and educationally backward classes of citizens or for the Scheduled Castes and the Scheduled Tribes."

The professor emphasizes that this clause identifies the beneficiaries specifically as those who are "socially and educationally backward"—the word "economically" is conspicuously absent. This distinction would later become crucial in the Indra Sawhney case and in the debate over EWS reservations.

XX. Article 15(5): The 93rd Amendment and the Ashok Kumar Thakur Case

Article 15(5) was added by the 93rd Constitutional Amendment in 2005, during the Congress-led UPA government. The provision enables the state to make special provisions for the advancement of socially and educationally backward classes, Scheduled Castes, and Scheduled Tribes regarding their admission to educational institutions, including private educational institutions, whether aided or unaided by the state. However, the provision explicitly excludes minority educational institutions covered by Article 30(1).

The professor reiterates his critique of this minority exemption. He argues that the objective of the amendment is to ensure that poor and disadvantaged children can access quality education in good schools. Minority institutions, particularly Christian convent schools like St. Stephen's College, St. Mary's, St. Joseph's, and others, are among the best educational institutions in the country. Excluding these institutions from the obligation to admit disadvantaged students directly undermines the amendment's stated objective.

He makes a practical observation: while Christian minority educational institutions are numerous and highly reputed across India, Muslim minority institutions of comparable quality and reputation are very few. He mentions only Jamia Millia Islamia (where his son studied English Honors) and Aligarh Muslim University as notable examples, and even these are facing what he terms "Islamization." The practical effect of the minority exemption is therefore to protect Christian institutions (which are numerous) while providing a symbolic gesture toward Muslims (who have few institutions to protect) that serves no real educational purpose for the Muslim community.

The professor emphasizes that he is not speaking against Muslims or any community, but rather critiquing a policy that he believes fails the constitutional nexus test. The classification (excluding minority institutions) has no rational connection to the objective (educating disadvantaged children). In fact, it actively undermines the objective by excluding precisely the kinds of high-quality institutions where disadvantaged children would most benefit from studying.

XXI. The Indra Sawhney Case and the Definition of Backward Classes

The professor assigns students to read the Indra Sawhney vs. Union of India case (also known as the Mandal Commission case), specifically focusing on Justice Jeevan Reddy's judgment. He notes that the case involves 8-9 distinct issues, and students should study them issue-wise rather than simply reading the final ratio.

One of the fundamental questions addressed in the case was: who are the "backward class of citizens" referenced in Article 16(4)? The professor explains that Article 16(4) uses the phrase "backward class of citizens" without defining it—unlike Article 15(4), which specifies "socially and educationally backward classes." When Dr. Ambedkar was asked during the Constituent Assembly debates to define who constitutes the backward classes, his response was remarkably pragmatic: "I leave it for the Government of the day to decide who are the backward class of the people."

Dr. Ambedkar's reasoning, as explained by the professor, was that he did not want to bind future governments to a static definition. Social conditions change over time; a community that is backward today may, through education, economic advancement, and social mobility, become forward in the future. Conversely, circumstances could cause a forward community to become backward. If the Constitution had permanently defined certain groups as backward, either the definition would become outdated and inappropriate, or amending it would require the difficult process of constitutional amendment.

The professor illustrates this with a hypothetical: suppose a student named Afreen was considered backward at the time of the Constitution's framing, but 70 years later, she has become so forward that she could build a Taj Mahal for her husband. If the Constitution had permanently designated her community as backward, she would still have to be treated as backward despite her actual circumstances, unless the Constitution could be amended—a process made difficult by political obstruction from figures like Rahul Gandhi.

By leaving the determination to "the Government of the day," Dr. Ambedkar ensured that the identification of backward classes would remain responsive to changing social realities and accountable to democratic processes.

XXII. The 10% EWS Reservation Under Article 15(6) and the Janhit Abhiyan Case

The professor explains that Article 15(6) was added by the 103rd Constitutional Amendment, providing 10% reservation to Economically Weaker Sections (EWS). He notes that this amendment was brought by the Modi government in January 2019, just before the April 2019 elections, suggesting that electoral considerations motivated the timing.

He draws a parallel with an earlier attempt by the Congress government under P.V. Narasimha Rao, which had also tried to provide 10% reservation to economically poor people. However, that attempt was struck down as unconstitutional by the Supreme Court in the Indra Sawhney case. The Court's reasoning was that the Constitution, specifically Article 15(4) and Article 16(4), envisions reservation for those who are "socially AND educationally" backward—the conjunction "and" is crucial. Economic backwardness alone, without social and educational backwardness, was not a constitutionally valid basis for reservation.

The professor explains the practical difficulty with economic criteria: it is relatively easy to obtain false certificates claiming poverty. He shares an anecdote about two students—Shreya Pandey from Bhopal and Ayesha, two years senior—who came from families owning multiple factories but had obtained "below poverty line" certificates and were receiving scholarships. When confronted, Shreya claimed she had not obtained the certificate herself. The professor also recounts a humorous story about a student who wrote an essay describing her father's "poverty"—he was so poor that he could afford only one driver for his BMW, and when that driver took leave, he had to drive himself in Delhi traffic, unable to read the newspaper and missing tenders worth crores of rupees.

Given the difficulty of reliably determining economic status, Dr. Ambedkar focused on social and educational backwardness, which are more readily identifiable and less susceptible to fraudulent claims. However, when the Modi government amended the Constitution through the 103rd Amendment to explicitly provide for EWS reservation in Articles 15(6) and 16(6), it effectively overcame the Indra Sawhney objection. As the professor explains: the Supreme Court had said economic reservation was unconstitutional because the Constitution didn't provide for it; the government responded by amending the Constitution to provide for it explicitly.

The constitutional validity of the 103rd Amendment was challenged and ultimately upheld by the Supreme Court in the case of Janhit Abhiyan vs. Union of India (2023, or possibly 2022). The professor assigns this case as required reading, instructing students to determine how many judges comprised the bench, what issues were framed, what the decisions were on each issue, whether there were any dissenting judgments, and what the ratio decidendi and supporting reasoning were. Students are to prepare a one-page summary.

XXIII. The Indra Sawhney Case: Issues and Significance

The professor identifies the Indra Sawhney case as one of the most significant constitutional decisions regarding reservation policy. He instructs students to read the judgment of Justice Jeevan Reddy specifically, while covering all the issues addressed in the case.

The case addressed multiple critical questions:

1. **Who are the "backward classes"?**: The Court had to define the criteria for identifying backward classes of citizens for purposes of reservation under Article 16(4).
2. **The 50% ceiling on reservation**: The Court established that reservation cannot exceed 50% of available positions, as exceeding this limit would compromise the fundamental right to equality that remains the dominant constitutional value.
3. **Economic criteria for reservation**: The Court held that reservation cannot be provided solely on economic grounds. The Constitution's framework focuses on social and educational backwardness, not economic backwardness alone. The professor explains that this was the key reason the earlier Congress government's attempt to provide 10% reservation to economically poor sections was struck down.
4. **The creamy layer principle**: The Court introduced the concept that the "creamy layer"—those from backward classes who have achieved significant economic and social advancement—should be excluded from reservation benefits to ensure that benefits reach the genuinely disadvantaged.
5. **Reservation in promotions**: The case addressed whether reservation could be extended to promotions, not just initial appointments.

The professor notes that when the 103rd Amendment later provided EWS reservation and exceeded the 50% ceiling, it was upheld because EWS reservation is fundamentally different in character: it is not caste-based reservation, and it specifically excludes those already receiving reservation benefits.

XXIV. Closing Instructions and Assignments

The professor concludes the lecture with specific reading assignments for the students' three-day break (Friday night through Sunday night):

1. **Janhit Abhiyan vs. Union of India**: Students must read this case regarding the constitutional validity of Article 15(6) and Article 16(6), added by the 103rd Constitutional Amendment. They should identify the bench composition, issues, decisions, any dissenting judgments, and the ratio decidendi. A one-page written summary is required.
2. **Ashok Kumar Thakur vs. Union of India**: Students must read this 2008 case regarding the constitutional validity of Article 15(5) and the minority institution exemption. They should understand both the Supreme Court's reasoning and the professor's critique that the classification fails the nexus test.
3. **Indra Sawhney vs. Union of India**: Students must read this case, focusing on Justice Jeevan Reddy's judgment and covering all issues. This is described as a foundational case for understanding reservation jurisprudence.
4. **State of Madras vs. Champakam Dorairajan**: This is assigned as a "bonus case"—a shorter case that explains why Article 15(4) was added through the First Constitutional Amendment.

The professor emphasizes that he has covered almost everything required regarding Article 14 in class, including Rule of Law, Legitimate Expectation, Positive Discrimination, Negative Discrimination, and Classification. He has also discussed the American experience with "Separate but Equal" doctrine and the problems African Americans faced. He notes that while India's constitutional framers learned from the American experience, challenges of discrimination persist in both societies.

The lecture concludes with the professor expressing gratitude to the students and indicating that the next session will begin Article 15 from the beginning, having covered the later clauses in reverse order during this session.